

Jai Prakash Varma @ Rinku Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 5 August 2022 · Writ-C No. 22225 of 2022 · Writ-C No. 22225 of 2022 · **Writ disposed; Para 6.8 objection directed with stay of recovery.**

HEADNOTE

A writ seeking to quash recovery of Rs. 7,08,521 by Purvanchal Vidyut Vitran Limited was disposed of without any opinion on merits. The petitioner was given liberty to file an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks; if filed, respondent no. 3 is to decide it in accordance with law within the next four weeks after hearing. Coercive action on the demand is stayed for eight weeks or until the objection is decided, whichever is earlier.

FACTUAL SUMMARY

The petitioner challenged recovery of Rs. 7,08,521 by Purvanchal Vidyut Vitran Limited, Electricity Distribution Division-II, Varanasi. He sought certiorari to quash the Executive Engineer's 20 February 2021 request to the Tehsildar, Pindra, to recover that sum, and a 21 June 2019 recovery order of respondent no. 3 for the same amount. Counsel for the distribution licensee stated on instructions that the petitioner could file an objection to the demand, to be decided in a time-bound manner.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

Para 6.8 objection as alternate remedy with stay of recovery

HOLDING

Without expressing any opinion on merits, the writ is disposed of with liberty to the petitioner to submit an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 before respondent no. 3 within four weeks. If submitted in time, the objection shall be decided in accordance with law within the next four weeks after reasonable opportunity of hearing. Coercive action on the impugned demand is stayed for eight weeks or till disposal of the objection, whichever is earlier. ¶ 4-5

FLAG Order cites Para 6.8 only, without a numbered sub-clause.

PRINCIPLE TAGS

pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay Court directed a time-bound Para 6.8 objection, reasoned disposal after hearing, and stay of coercive recovery pending that disposal. ¶ 4-5

para-6.8-objection-alternate-remedy Writ challenging the Rs. 7,08,521 demand was closed by relegating the consumer to the Para 6.8 objection, without a merits grant or refusal. ¶ 4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RS. 7,08,521 RECOVERY DEMAND AND THE 21.06.2019 / 20.02.2021 RECOVERY ORDERS

Court expressly declined to express any opinion on merits. ¶ 4